

26NWUD00598 26NWUD00598

County: los-angeles

Division: Civil Law and Motion

Department: R

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Case Number: 26NWUD00598 Hearing Date: July 8, 2026 Dept: R

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MAIN STREET MANAGEMENT, INC. v. ANTONIO
ALVAREZ

CASE NO.: 26NWUD00598

HEARING: Wednesday, July 8, 2026, at 9:30 AM

Plaintiff's Motion
for Summary Judgment is GRANTED.

Moving Party to give notice.

BACKGROUND

On April 2, 2026, Plaintiff MAIN STREET MANAGEMENT, INC. ("Plaintiff") filed this unlawful detainer action against Defendant ANTONIO ALVAREZ ("Defendant").

Plaintiff's Complaint asserts one sole cause of action for unlawful detainer.

As of July 6, 2026, Defendant has not filed an opposition. However, in an action for unlawful detainer, written oppositions may be filed on or before the court day before the hearing. (CRC Rule 3.1351(b).) Further, "[a]ny opposition to the motion and any reply to the opposition may be made orally at the time of hearing...." (CRC Rule

3.1351(c).)

Plaintiff's Motion for Summary Judgment

Plaintiff moves for summary judgment on the ground that there are no triable issues of fact with respect to Plaintiff's single cause of action for unlawful detainer.

Under CCP §1161(2), a tenant is guilty of unlawful detainer "[w]hen he continues in possession... without the permission of the landlord... after default in the payment of rent, pursuant to the lease or agreement under which the property is held, and three days' notice... in writing, requiring its payment, stating the amount that is due... shall have been served upon the tenant...." (Id.)

On June 10, 2026, the Court granted Plaintiff's Motion to Deem Requests for Admission, Set One Admitted against Defendant.

Defendant's Admissions prove the following:

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Plaintiff is the landlord of the property located at 5018 Santa Ana Street, Unit #2, Cudahy, CA 90201. (Ex. 1, Admission One; see also Ex. 3 "Lease Agreement")

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Plaintiff served proper three days' written notice to pay rent or vacate the Subject Property. (Ex. 1, Admissions Two through Four.)

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Defendant failed to comply with the notice. (Ex. 1, Admission Five.)

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Defendant remained in possession of the Subject Property. (Ex. 1, Admission Six.)

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Plaintiff is entitled to possession of the Subject

Property. (Ex. 1, Admission 7.)

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There are no facts that give rise to an affirmative defense. (Ex. 1, Admission 12.)

Plaintiff established it is entitled to a Judgement for Possession. Defendant failed to oppose the instant motion and thus, the Court finds there is no triable issue remaining.

The Motion for Summary Judgment is GRANTED.